

1 ENGROSSED HOUSE
2 BILL NO. 3919

By: Pfeiffer of the House

3 and

4 Kern of the Senate
5
6

7 An Act relating to counties and county officers;
8 amending 2 O.S. 2021, Section 15-68, which relates to
9 the board of directors for the free fair association;
10 allowing board of county commissioners to vote to
11 have a five-member board; providing manner in which
12 five-member board shall be elected; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 2 O.S. 2021, Section 15-68, is
16 amended to read as follows:

17 Section 15-68. A. There is hereby constituted a board of
18 directors for the free fair association.

19 B. 1. The board of directors shall be composed of nine (9)
20 members, unless the board of county commissioners determines by vote
21 to form a five-member board of directors under subsection I of this
22 section, who shall be by written ballot elected for a term of three
23 (3) years. Three members shall be elected annually, one from each
24 county commissioner's district of the counties, at a public meeting

1 or convention of the qualified electors of each commissioner's
2 district in the counties.

3 2. A qualified elector shall be a registered voter of the
4 county and may only vote for the board members from the district in
5 which the elector resides. The county commissioner holding the
6 election may request proof of residency and a voter registration
7 card of the county to qualify electors.

8 3. The board of county commissioners shall include in the
9 publication notice of the election the requirements to be a
10 qualified voter. Notice of the election shall be given by
11 publication in a newspaper published in each of the counties for ten
12 (10) days before the election. Notice of the filing period for the
13 election shall be given in a newspaper published in the county,
14 published one time at least ten (10) days before the filing period
15 for the election.

16 C. The board of county commissioners shall, by resolution, set
17 forth the following conditions concerning the election:

18 1. The filing period shall consist of five (5) consecutive
19 business days and commence in January;

20 2. The date and time the filing period will commence and end;

21 3. The date, time and place of the election;

22 4. Only registered voters of the county are eligible to file as
23 a candidate;

24

1 5. Any person so filing must reside in the commissioner's
2 district or city they seek to represent;

3 6. Prospective candidates must file with the county clerk; and

4 7. The board of county commissioners shall prescribe a form to
5 be used by prospective candidates filing for the position of
6 director of the fair association board.

7 D. 1. The date of the election for the fair association board
8 of directors shall be no later than three (3) weeks from the date of
9 the final day of the filing period. If there is only one candidate
10 for any of the commissioners' districts, the commissioners may
11 cancel the election with notice being given by publication and
12 posting at least ten (10) days prior to the election date previously
13 established and the candidate shall be deemed to be elected.

14 2. In the event there is no candidate for the election to the
15 fair association board of directors, the county commissioners shall
16 appoint a director for each position for which no candidates have
17 filed by the close of the filing period. The appointment or
18 appointments will be announced no later than two (2) weeks from the
19 closing of the filing period.

20 3. When a director is unable to fulfill the term to which the
21 director has been elected to serve, for any reason, the board of
22 county commissioners shall appoint the successor.

23 E. For a nine-member board:
24

1 1. At the annual election there shall be elected one (1) person
2 from each commissioner's district who is a qualified elector of the
3 district. Each shall serve as a director of the association for a
4 term of three (3) years, and until a successor is elected or
5 appointed and qualified.

6 2. The commissioner or commissioner's designee shall preside at
7 the meeting and have the authority to appoint a secretary of the
8 meeting. The commissioner and secretary shall certify to the county
9 clerk of each of the counties the names of the directors elected,
10 and the county clerk shall keep a record thereof and shall issue to
11 each person elected a certificate of election.

12 F. When a tie vote occurs in the election of a fair association
13 board of directors, the commissioner or commissioner's designee
14 shall select the candidate by lot pursuant to the procedures set
15 forth in Section 8-105 of Title 26 of the Oklahoma Statutes.

16 G. 1. The directors so elected shall meet at the next
17 regularly scheduled monthly meeting immediately following the
18 elections at the regular meeting place of the counties for the
19 purpose of organization, and shall elect a president, a vice-
20 president, a secretary and a treasurer; provided, that the secretary
21 need not be a member of the board of directors.

22 2. The treasurer shall furnish a surety bond executed with a
23 qualified surety company doing business in this state, in such
24 amount as the directors of the board may determine to be necessary

1 to indemnify against any loss which may arise by reason of failure
2 to perform the necessary duties of the office or other misconduct in
3 office for which the director shall be held liable.

4 H. Meetings of the directors may be called by the president of
5 the board or fixed by the board at any time convenient. However,
6 the first election held under this section shall be on the first
7 Saturday of June, and the board so elected at the election shall
8 meet for organization purposes on the second Saturday of June of
9 such year.

10 I. Upon a vote of the board of county commissioners, the board
11 of directors for the free fair association shall be composed of five
12 (5) members, who shall be by written ballot elected for a term of
13 three (3) years. A five-member board of directors shall function
14 the same as a nine-member board and be subject to all of the
15 requirements of a nine-member board except as described in this
16 subsection or otherwise indicated in this section. The members
17 shall be elected at a public meeting or convention of the qualified
18 electors of each commissioner's district in the counties as follows:

19 1. One member from each county commissioner's district shall be
20 elected by the respective qualified electors of each commissioner's
21 district; and

22 2. Two members shall be elected as members at large by all of
23 the qualified electors of the county.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate